COMPLIANCE CHECKLIST - PRE-SERVICE CHECKS

Section 8 Notice

> ℹ️ **Important**
>
> Landlord Heaven provides document generation and general information only. We are not a law firm and do not provide legal advice. Court outcomes depend on your evidence, service, and the facts of the case.

> ✓ **Pre-Service Compliance Check**
>
> Complete this checklist BEFORE serving your notice. Reviewing compliance helps you meet your landlord obligations and strengthens your case.

Property:	16 Willow Mews, York
Tenancy Start Date:	1 January 2024
Notice Type:	Section 8 (Fault-Based)
Generated:	5 April 2026

1 Critical Compliance Requirements

1. Deposit Protection

✓ **COMPLIANT**

Deposit Amount: £1200

Protection Scheme: TDS

Protection Date: 15 January 2024

Prescribed Info Given: No ✗

Evidence Required:

- Certificate of deposit protection from scheme
- Copy of prescribed information served to tenant
- Proof of service (email or letter with proof of posting)

2. Gas Safety Certificate

⚠ **Should be compliant**

Note: Gas safety certificates are legally required regardless of eviction route. Ensure you have one and have served it to the tenant.

Evidence Required:

- Copy of gas safety certificate (issued within last 12 months)
- Proof you served it to the tenant (email or letter with proof of posting)

3. Energy Performance Certificate (EPC)

⚠ **Should have been provided**

Note: EPCs are legally required before any new tenancy. Ensure you have one.

Evidence Required:

- Copy of valid EPC (issued within last 10 years)
- Proof you served it to the tenant

4. "How to Rent" Guide

⚠ **Should have been provided**

Note: The "How to Rent" guide should have been given at the start of the tenancy. Download from: gov.uk

Evidence Required:

- Copy of the How to Rent guide (version given to tenant)
- Proof of service (email or letter with proof of posting)

2 Pre-Service Checklist Summary

Before Serving Your Section 8 Notice, Confirm:

- ☐ Deposit is protected (and prescribed info served)
- ☐ Gas safety certificate is current and served
- ☐ EPC is valid (rating E or above) and served
- ☐ "How to Rent" guide was served
- ☐ All evidence of service is saved and accessible
- ☐ Tenancy agreement is signed and valid
- ☐ Notice is filled out correctly with accurate dates

⚠ **FINAL CHECK**

Section 8 notices have fewer compliance requirements than Section 21. While non-compliance with the above will not automatically invalidate your Section 8 notice, you should still ensure you meet your landlord obligations to avoid separate penalties or enforcement action. If you are unsure about any requirement, seek legal advice before serving the notice.

Legal Basis: Housing Act 1988, Housing Act 2004 (HMOs), Energy Efficiency Regulations 2015, Tenancy Deposit Protection Regulations 2007

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